IN THE DISTRICT COURT '2' HELD AT ADENTAN, ACCRA ON TUESDAY 10TH JUNE 2025 BEFORE HER WORSHIP RHODA K. DONKOR

SUIT NO. GR/AD/DC2/B7/009/25

THE REPUBLIC

VRS.

DESMOND KWAME AGBODZA

JUDGMENT

The Accused person was charged before this court with the offences of:

a. **Unlawful Entry Contrary to Section 152 of the Criminal offences Act, 1960 (ACT 29).**

b. **Stealing Contrary to Section 124 (1) of the Criminal Offences Act, 1960 (ACT 29).**

The Accused pleaded not guilty to all the charges.

The brief facts of the case as presented to the court by the prosecution are that, the Complainant is a Foreman at State Housing Company's Construction Site at Adenta Housing Down; whilst the Accused person is unemployed and live in Madina. On the 3rd day of November, 2024 at about 8:50 p.m., the Accused went to the construction site of the Complainant's company to cut and removed some of the electrical cables from the conduit pipes in one of the buildings. The Complainant spotted the Accused but he managed to concealed himself in one of the rooms in the building. The Complainant conducted a search in the room and the Accused was arrested with a backpack containing the electrical cables

and taken to the police station. After police investigations, the Accused person was charged with the offences as stated on the charge sheet and brought before this court.

The prosecution called a witness in the person of the Investigator in prove its case. The witness on oath in his evidence contained in his witness statement filed on the 24th day of January, 2025, stated that during investigations, the police together
with the Complainant and the Accused person, went to the scene of crime, where the Accused demonstrated to them the manner in which he scaled the fence wall of the State Housing Company to gain access into the construction site. That the Accused person admitted ownership of the backpack which was found with the electrical cables. The Cautioned Statement, Charged Statements and Photographs of the backpack and the electrical cables were tendered into evidence.

The Accused in his evidence on oath only said he knew nothing about the Charges against him and failed to cross examined the PW1, the Sole witness of the prosecution.

The Summary of the case for the prosecution is that on the day in question, the Accused person unlawfully entered the Construction Site of the Complainant's Company to cut and remove electrical cables in the conduit pipes in one of the buildings. However, the Accused person has denied the assertion.

Section 13(1) of the Evidence Act 1975, (NRCD323) provides that, "in a Civil or Criminal action, the burden of persuasion as to the commission by a party of a crime which is directly in issue requires proof beyond a reasonable doubt".

On the charge of Unlawful Entry as provided for in **Section 153 of Act 29** and held in the Case of **Kanjarga vrs. The State (1965) GLR 479 SC**, the prosecution is to prove that:

i. The Accused entered the building.

ii. The entry was unlawful.

iii. The Accused entered with the intent to commit a crime.

Section 124 of Act 29 creates the offence of Stealing and **Section 125 of Act 29** defines the offence of Stealing as "A person steals who dishonestly appropriate a thing of which the person is not the owner".

In the case of **Brobbey and Others vrs. The Republic (1982-83) GLR 357**, the Court stated the essential elements of Stealing as follows;

a. The person charged must have appropriated the thing allegedly stolen
b. The appropriation of a thing allegedly stolen must have been dishonest.
c. The person charged must not be the owner of the thing allegedly stolen.

Although the Accused person claimed that his purpose for entering the building was to take a rest, a backpack found in his possession contained some electrical cables which upon investigations, were established to have been cut from the said building. The Accused person also admitted ownership of the backpack in which the electrical cables were concealed. However, though the Accused denied stealing the electrical cables, he failed to adduce any evidence or call any witness to establish that the electrical cables contained in his backpack were his personal property.

It is clear from the evidence adduced before this Court that the Accused person entered the building without the consent and authority of the owner, and with the intent to commit a crime.

On the totality of the evidence, the prosecution has led credible evidence to establish that it was indeed the Accused person who entered the building to cut the electrical cables from

the conduit pipes at the construction site of the Complainant on the day in question, and concealed same in his backpack.

Accordingly, the Court finds that the prosecution has been able to discharge the burden of proof as required by law and has sufficiently established its case against the Accused person on the charges as stated on the charge sheet.

The Accused is hereby found guilty on both charges and convicted.
He is sentenced on Count One (1) to a fine of 100 penalty units, in default to 12 months imprisonment in hard labour.
The Accused is further sentenced on Count Two (2), to a fine of 200 penalty units in default to 18 months in imprisonment in hard labour.
The sentences to run concurrently.

SGD

H/W RHODA K. DONKOR

MAGISTRATE